

Prospectus closure: language and option selection

LegalMath development note

5 October 2026

BASF's March 2032 notes illustrate a problem that downloading a prospectus alone cannot solve. The final terms select fixed-rate Option I from the September 2022 programme, specify German as the controlling language, and delete alternatives that are unselected, incomplete or struck out. A reader must apply those choices before interpreting the template's clauses.¹

The new source record binds the final terms to the base prospectus of 9 September 2022 and its first supplement of 27 February 2023. It checks 21 explicit selections. Page 6 selects an issuer call during 8 December 2031–7 March 2032 but marks a separately worded call tied to interest payment dates as unavailable. A search for issuer calls cannot distinguish those provisions. Likewise, the annual ICMA choice excludes short or long coupons, although other day-count alternatives remain printed in the programme.

The controlling German text preserves further qualifications. The ranking clause recognises priority created by mandatory law. The payment-day clause denies additional interest for the specified delay. Section 15 expressly states that the English translation is nonbinding.² These passages support bounded source decisions. Other optional clauses, incorporated financial statements and applicable agreements still require review.

¹BASF final terms, 6 March 2023, pp. 2–3 and 7; [retained original](#).

²BASF base prospectus, pp. 110, 112, 114 and 133; [retained original](#).

Deutsche Bank’s 2025 AT1 prospectus presents a different obstacle. On pages 36–38, German occupies the left column and English the right. The earlier extraction preserved visual rows, causing the reader to join fragments from both languages. The reviewed derivative separates the columns using word coordinates and retains every word in its language or page-number region.³

The distinction matters in section 2(7). The resolution authority may write claims down to zero, or convert them into ordinary shares of the issuer, a group entity or a bridge bank, or into other ownership instruments qualifying as Common Equity Tier 1. The last alternative prevents a conclusion that conversion must be exclusively into common shares. The paragraph also preserves the no-event-of-default qualification. Those words are now available as a contiguous English passage, alongside the retained German column.

123 engineering tests passed. The source-admission tests reject lost negation, ambiguous selections, inconsistent bilingual fields, changed originals or images, overlapping geometry and derivatives that no longer reconstruct from the reviewed words. The earlier OCR and conditional financial checks also pass.

The frozen reader generated 3 records, including 1 unresolved, on the original three pages and 3 records, including 1 unresolved, after column separation. These figures describe changed segmentation and classification on known development examples. They do not measure legal accuracy. The engineering result is narrower: the reviewed words and material qualifiers survive the optional extraction path, and provenance checks reject alteration. A source-specific annotation now records the disclosed write-down power and both conversion alternatives. It abstains on unreviewed rewording or added exceptions; actual legal applicability and mandatory common-share-only conversion remain unknown. This exact reviewed construction is not a general semantic rule.

Independent legal adjudication, further page qualification, complete operative documents and actual issuer or investor facts remain necessary. No production default changed, and this round made no new network request. Historical evidence and existing independent-review forms remain intact. The next source task is to finish BASF’s German clause selection; the next extraction task is to qualify the remaining Deutsche pages before widening semantic repair.

³Deutsche Bank, AT1 Notes Prospectus, ISIN DE000A460DG7, PDF pp. 36–38; [retained original](#).